Working

The CVC conducts its proceedings at its headquarters (New Delhi). It is vested with the power to regulate its own procedure. It has all the powers of a civil court and its proceedings have a judicial character. It may call for information or report from the Central government or its authorities so as to enable it to exercise general supervision over the vigilance and anti-corruption work in them.

The CVC, on receipt of the report of the inquiry undertaken by any agency on a reference made by it, advises the Central government or its authorities as to the further course of action. The Central government or its authorities shall consider the advice of the CVC and take appropriate action. However, where the Central government or any of its authorities do not agree with the advice of the CVC, it shall communicate the reasons (to be recorded in writing) to the CVC.

The CVC has to present annually to the President a report on its performance. The President places this report before each House of Parliament.

Whistle Blowers Protection Act (2014)

The salient features of the Whistle Blowers Protection Act (2014)[6] are as follows[7]:

1. The Act provides a mechanism for protecting the identity of whistle blowers (a term given to people who expose corruption). People who expose corruption in Government or irregularities by public functionaries can now be free of any fear of victimization.

2. The Act also provides for a system to encourage people to disclose information about corruption or the wilful misuse of power by public servants, including ministers.

3. As per the Act, a person can make a public interest disclosure on corruption before a competent authority – which is at present the Central Vigilance Commission (CVC). The government, by notification, can appoint any other body also for receiving such complaints about corruption.

4. The Act, however, lays down punishment of up to two years in prison and a fine of up to `30,000 for false or frivolous complaints.

5. The Act says that every disclosure shall be made in good faith and the person making the disclosure shall provide a personal declaration stating that he/she reasonably believes that the information disclosed by him/her and the allegation contained therein is substantially true.

6. Disclosures can be made in writing or by email message in accordance with the procedure as may be prescribed and contain full particulars and be accompanied by supporting documents, or other material.

7. However, no action shall be taken on a disclosure if it does not indicate the identity of the complainant or public servant or if "the identity of the complainant or public servant is found to be incorrect."

8. The Act is not applicable to the Special Protection Group.

[1]The Committee on Prevention of Corruption with parliamentarian K. Santhanam as the Chairman, five other MPs and two senior officers as members, was appointed by the Government of India in 1962.